DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

Memorandum for Record

Date: May 28, 2025
From: Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™
To: Mr. Clinton D. Pope, Chief Quality Officer

Subject: Formal Objection to Retaliatory Directive and Interference with Official Duties – PX3147

This memorandum documents a formal and legal objection to the directive issued on May 28, 2025, ordering that I remove myself from all approval workflows in PolicyStat. This directive—delivered via email by you, Mr. Pope—is retaliatory, lacking lawful justification, and directly impairs my ability to perform essential duties assigned under Position Description PX3147. Further, the concealed placement of this instruction within your email, without visual emphasis, appears calculated to obscure the directive and potentially establish a basis for a false claim of insubordination.

Since being officially detailed to this position on **April 1, 2023**, I have served as the **final approver** for all organizational policies at Phoenix Indian Medical Center (PIMC), including both clinical and administrative directives. My role in the PolicyStat workflow was fully visible to all levels of leadership and critical to our compliance with accreditation and federal regulatory standards. This authority was never questioned until I engaged in protected whistleblowing activities.

There has been no formal change to my position, no reassignment, and no reclassification. Therefore, the claim that my participation in the approval workflow is now "inappropriate" is not only legally unsubstantiated—it is clearly retaliatory in nature.

Detailed Timeline and Background

- **April 1, 2023:** Detailed into the role of Policy and Procedure Nurse Consultant (PX3147) with direct responsibilities including policy review, oversight, and final approval within the PolicyStat platform.
- **April 8, 2025:** Submitted a memorandum to Executive Leadership identifying serious deficiencies in sentinel event reporting and policy alignment with CMS and The Joint Commission (TJC) standards.
- **May 21, 2025:** Issued a formal memorandum to the Governing Body outlining noncompliance with regulatory frameworks, including failure to appropriately classify sentinel events and policy approval deficiencies.

- **May 25, 2025:** Sent a follow-up memorandum to you, Mr. Pope, reiterating that core duties remain unclarified in light of ongoing marginalization and lack of response to prior disclosures.
- **May 27, 2025:** Submitted a formal memorandum requesting clarification of whether removal from workflows constitutes a reassignment or revocation of my officially described duties.
- **May 28, 2025 at 10:10 AM:** You issued an email directive ordering that I "remove yourself from all approval workflows." This language was placed inconspicuously at the end of a paragraph, lacking formatting or emphasis, unlike other highlighted instructions in your message. The placement and presentation of this directive appear calculated to:
    1. Conceal the retaliatory nature of the action; and
    2. Create a pretext for potential disciplinary action for noncompliance or insubordination had I not immediately discovered and acted on the concealed instruction.
- **May 28, 2025 at 11:26 AM:** Filed formal complaints of retaliation with the **U.S. Office of Special Counsel**:
    - **DI-25-001642** – Open
    - **MA-25-004957** – Open

Duties Impaired Under PX3147

The directive effectively prevents performance of every core function identified in my Position Description (PX3147), including:

1. **"Provides consultative and advisory services for the development, content, and authentication of organizational policies and procedures."**
   ➤ Without workflow access, I cannot authenticate or contribute to policy revisions in real time.
2. **"Oversees the coordination and distribution of all new and revised policies."**
   ➤ Exclusion from workflows prevents real-time notification of changes and the ability to coordinate cross-disciplinary review.
3. **"Manages the on-line organization of these documents."**
   ➤ Deletion from the system nullifies oversight of document version control and policy hierarchy.
4. **"Advises leaders on implementing new regulations and processes."**
   ➤ Informed advisory services require participation in policy development and approval processes.
5. **"Collaborates with leaders to maintain documented scopes of services."**
   ➤ Requires live visibility into applicable service policy and procedural documents.
6. **"Forms multidisciplinary teams to develop and implement policies and protocols."**
   ➤ Not feasible if excluded from the system where such initiatives are proposed and tracked.
7. **"Provides guidance for compliance-related documentation and internal controls."**
   ➤ Not possible without access to the evolving versions of clinical and administrative policy.
8. **"Supports continual survey readiness and risk mitigation through policy oversight."**
   ➤ Completely obstructed without participation in approval workflows or review cycles.

Legal and Regulatory Violations

Federal Laws Potentially Violated

- **5 U.S.C. § 2302(b)(8) – Whistleblower Protection:**
  Prohibits retaliation against a federal employee for disclosing violations of law, gross mismanagement, waste, abuse of authority, or threats to public health/safety. This includes disclosures made in good faith on April 8 and May 21, 2025.
- **5 U.S.C. § 2302(b)(9)(C) – Retaliation for Participation in Investigations or Refusal to Obey Unlawful Orders:**
  Protects employees who:
  - Cooperate with Inspector General investigations;
  - Refuse to comply with illegal orders.
- **5 U.S.C. § 2302(a)(2)(A) – Prohibited Personnel Practices:**
  These actions constitute prohibited personnel actions, including:
  - **Reassignment without cause;**
  - **Change in duties;**
  - **Creation of a hostile work environment.**

Agency Policy Violations

- **HHS Instruction 731-1 and HHS Non-Retaliation Policy:**
  Retaliation for protected disclosures is explicitly prohibited and grounds for disciplinary action.
- **IHS Circular No. 2021-01:**
  Mandates employee protection for good faith reporting of violations, mismanagement, or noncompliance.
- **Indian Health Manual – Part 8, Chapter 17:**
  Requires institutional policies to undergo structured review by qualified subject matter experts, which has been historically fulfilled by my workflow participation.

Conclusion and Formal Request

The directive issued on May 28, 2025, is retaliatory, unauthorized, and incompatible with my duties as outlined in PX3147. It obstructs the core performance expectations of my federal position and violates statutory protections under federal law.

I hereby respectfully request:

1. **Immediate reinstatement to all policy approval workflows in PolicyStat;**
2. **A written legal opinion from Area Counsel or the Office of General Counsel identifying any authority for my removal;**
3. **Written assurance that this change does not constitute a reassignment, demotion, or modification of PD duties;**
4. **Protection from further acts of retaliation related to whistleblower disclosures.**

This memorandum is submitted as a formal record of prohibited personnel actions and will be provided to all oversight authorities identified below.

Respectfully submitted,

Digitally signed by Kevin D. Turnage -S
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CC:

- U.S. Office of Special Counsel (OSC)
- U.S. Department of Health and Human Services Office of Inspector General (HHS OIG)
- Senator Mark Kelly
- Senator Ruben Gallego
- Congressman Andy Biggs
- Senate Homeland Security & Governmental Affairs Committee
- House Committee on Oversight and Accountability
- Dr. Endreya McCabe, Phoenix Area Director of Quality and Performance Improvement
- Marlon White, Human Resources
- Randolph B. Beasley III, Director, Division of Personnel Security and Ethics, Designated Agency Ethics Official
- Gretchen Weaver, Alternate Designated Agency Ethics Official
- Daniel Frye, Acting Director, Office of Human Resources, Bemidji Area Office, Deputy Ethics Counselor